

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
FANTA CONDE,

Plaintiff,

-against-

THE CITY OF NEW YORK, and NEW YORK CITY
POLICE OFFICER ELISA M. RANIERI, Shield No.
10822,

Defendant.

-----X

SUMMONS

Plaintiff designates Kings
County as the place of trial

The basis of the venue is:
Location of motor vehicle
accident

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty (30) days after the completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 7, 2024

Caitlin Robin

Caitlin Robin, Esq.

CAITLIN ROBIN & ASSOCIATES, PLLC

Attorneys for Plaintiff

FANTA CONDE

30 Broad Street, Suite 702

New York, New York 10004

Phone: (646) 524-6026

Email: caitlin@robinandassociates.com

To:

THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, 1
Lefrak City Plaza, Queens, NY 11368

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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FANTA CONDE,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.:

THE CITY OF NEW YORK, and NEW YORK CITY
POLICE OFFICER ELISA M. RANIERI, Shield No. 10822,

Defendant.

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Plaintiff, FANTA CONDE, by her attorneys, CAITLIN ROBIN & ASSOCIATES, PLLC, as and for her Verified Complaint, alleges upon information and belief as follows:

1. At all times hereinafter mentioned, Plaintiff, FANTA CONDE, was and is a resident of New York State, residing at 750 Gates Avenue in Brooklyn, New York 11221.
2. Upon information and belief, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822 was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
3. Defendant NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, is being sued in her individual and official capacity.
4. At all times hereinafter mentioned, Defendant NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, was the registered owner of a Toyota Sedan motor vehicle bearing NY plate #AY6858.

5. Upon information and belief, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, operated the aforementioned motor vehicle.

6. Upon information and belief, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, was insured to operate the aforementioned motor vehicle.

7. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

8. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

9. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in

compliance with the Municipal Law Section 50 and in accordance with New York State law.

10. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

13. At all times hereinafter mentioned, the intersection of Greene Avenue and Stuyvesant Avenue is a public roadway and/or thoroughfare in Brooklyn, New York.

AS AND FOR A FIRST CAUSE OF ACTION

Negligence

14. That on June 10, 2023, at approximately 8:30 p.m., Plaintiff, FANTA CONDE was a lawful pedestrian at or around the intersection of Greene Avenue and Stuyvesant Avenue in Brooklyn, New York.

15. That upon information and belief, on June 10, 2023, at approximately 8:30 p.m., Defendant, NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, was operating her aforementioned motor vehicle at or around the intersection of Greene Avenue and Stuyvesant Avenue in Brooklyn, New York.

16. That at the aforementioned time and location, Plaintiff FANTA CONDE was lawfully traversing the crosswalk with her dog on a leash on Stuyvesant Avenue crossing Greene Avenue, when Defendant NEW YORK CITY POLICE OFFICER ELISA

M. RANIERI, Shield No. 10822, failed to yield to Plaintiff's right of way and negligently, recklessly and carelessly struck Plaintiff's dog with her aforesaid vehicle.

17. That at that time, Defendant NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, refused to give her information to Plaintiff after the collision, nor did she stop to try to assess the Plaintiff's condition.

18. That as a result of the aforesaid incident, Plaintiff, FANTA CONDE, was seriously injured, as defined by Article 51 of the New York State Insurance Law.

19. That as a result of the aforesaid incident, Plaintiff, FANTA CONDE, sustained injury to her dog causing her to transport her dog for immediate treatment, resulting in necessity for her dog's ear to be amputated.

20. That the aforesaid occurrence was caused wholly and solely by reason of the negligence of the Defendant without any fault or negligence on the part of the Plaintiff contributing thereto.

21. That Defendant, NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, was negligent, careless, and reckless and grossly negligent in the ownership, operation, management, maintenance, supervision, use, and/or control of the aforesaid Toyota sedan motor vehicle; failing to keep the motor vehicle under control at all times; failing to operate the motor vehicle in a safe and reasonable manner; failing to exercise reasonable care in the operation of the motor vehicle; failing to keep an adequate look out; failing to see what was there to be seen at the aforementioned time and place; failing to operate the subject vehicle in compliance with state and traffic laws; and that the Defendant was otherwise negligent, careless, and reckless under the circumstances then and there prevailing.

22. That Defendant, NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, violated New York state and local traffic laws, including (N.Y. VTL) §1142(b), which states that all motorists must yield to any pedestrian crossing the road upon which they are traveling, and that a collision with a pedestrian in a crosswalk will be considered sufficient evidence of failure to yield to said pedestrian; and (N.Y. VTL) §1151(a), which provides that even at an unmarked and/or malfunctioning crosswalk, all drivers shall yield to pedestrians the right of way.

23. Defendant was at all times an agent, servant, and employee acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

24. The City, as the employer of the officer defendant, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

25. That by reason of the foregoing, Plaintiff FANTA CONDE sustained severe and permanent personal injuries as defined by §5102(d) of the Insurance Law of the State of New York.

26. That this action falls within one or more of the exceptions set forth in CPLR §1602, including but not limited to §1602 (6) & (7).

27. That by reason of the foregoing, Plaintiff, FANTA CONDE, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
Negligent Infliction of Emotional Distress

28. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 27 with the same force and effect as if more fully set forth at length herein.

29. By the actions described herein, defendant NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, acting individually and in her official capacity as an officer of the New York City Police Department, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, FANTA CONDE.

30. The acts and conduct of the defendant were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

31. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

32. Defendant was at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

33. The City, as the employer of the officer defendant, is responsible for her wrongdoing under the doctrine of *respondeat superior*.

34. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

AS AND FOR A THIRD CAUSE OF ACTION
Intentional Infliction of Emotional Distress

35. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. Defendant, NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, engaged in extreme and outrageous conduct by failing to yield to civilian pedestrians and traffic conditions then and there prevailing, failing to abide by state and local traffic laws, and by failing to adequately operate her motor vehicle, thus creating conditions that caused Plaintiff's dog to sustain serious injuries.

37. In creating conditions that caused Plaintiff FANTA CONDE to sustain serious injuries to her dog, and in refusing to give Plaintiff her personal information after the incident, Defendant NEW YORK CITY POLICE OFFICER ELISA M. RANIERI, Shield No. 10822, intended to cause Plaintiff severe emotional distress, or disregarded the substantial probability that their acts would cause Plaintiff severe emotional distress.

38. As a result of Defendants' conduct, Plaintiff FANTA CONDE suffered severe emotional distress.

39. Defendant was at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

40. The City, as the employer of the officer defendant, is responsible for her wrongdoing under the doctrine of *respondeat superior*.

41. By reason of the foregoing, Plaintiff demands judgment for intentional infliction of emotional distress in a sum exceeding jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff demands judgment against the Defendant herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
June 7, 2024

Yours, Etc.

Caitlin Robin

Caitlin Robin, Esq.

CAITLIN ROBIN & ASSOCIATES, PLLC

Attorneys for Plaintiff

FANTA CONDE

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FANTA CONDE,

Plaintiff,

-against-

THE CITY OF NEW YORK, and NEW YORK CITY
POLICE OFFICER ELISA M. RANIERI, Shield No. 10822,

ATTORNEY
VERIFICATION BY
AFFIRMATION

Index No.:

Defendants.
-----X

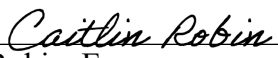
Caitlin Robin, Esq., being duly sworn deposes and says:

1. I am an attorney duly admitted to practice before the Courts of the State of New York and affirm the following to be true under penalties of perjury.

2. I am associated with Caitlin Robin & Associates, PLLC, attorneys of record for Plaintiff, FANTA CONDE. I have read the annexed Summons and Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records and other pertinent information contained in my files.

3. I make the foregoing affirmation instead of plaintiff, FANTA CONDE, because plaintiff resides outside of the county wherein your affirmant maintains offices.

Dated: New York, New York
June 7, 2024


Caitlin Robin, Esq.

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Plaintiff,

-against-

THE CITY OF NEW YORK, and NEW YORK CITY POLICE OFFICER ELISA M.
RANIERI, Shield No. 10822,

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SUMMONS AND VERIFIED COMPLAINT

CAITLIN ROBIN & ASSOCIATES PLLC
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